

SOFTWARE VENDOR AGREEMENT

This Software Vendor Agreement (the "**Agreement**") is entered into as of **March 15, 2024** (the "**Effective Date**") by and between:

TechCorp Supplies Inc, a California corporation ("**Vendor**"), and **Widgets Manufacturing Co**, a California corporation ("**Client**").

1. Services

Vendor agrees to provide software development and licensing services to Client as described in individual Statements of Work executed by both parties.

2. Payment Terms

Client shall pay Vendor monthly invoices within **thirty (30) days** of receipt (**Net 30**). Invoices shall be issued on the first business day of each calendar month. Late payments shall accrue interest at 1.5% per month.

3. Term and Termination

This Agreement commences on the Effective Date and continues until terminated. Either party may terminate this Agreement for any reason upon **sixty (60) days** prior written notice to the other party. Termination does not relieve Client of outstanding payment obligations.

4. Non-Competition

During the term of this Agreement, **Vendor shall not provide identical or substantially similar services to any direct competitor of Client** without Client's prior written consent. For purposes of this section, "direct competitor" means any entity that derives more than 30% of its revenue from the same product category as Client's primary product line.

5. Intellectual Property

All work product developed by Vendor specifically for Client under a Statement of Work shall be considered work-for-hire and owned exclusively by Client upon full payment.

6. Limitation of Liability

In no event shall either party be liable for indirect, incidental, consequential, or punitive damages, even if advised of the possibility of such damages.

7. Governing Law

This Agreement shall be governed by the laws of the **State of California**. Any disputes shall be resolved in the state or federal courts located in Santa Clara County, California.

TECHCORP SUPPLIES INC

By: _____

Name: Robert Chen

Title: President

Date: March 15, 2024

WIDGETS MANUFACTURING CO

By: _____

Name: Maria Garcia

Title: COO

Date: March 15, 2024